

where the complainant used this email account mfranklin@therightmove4u.com. If the respondent can enter into agreements, take orders and request payment using this email account then the respondent should not have any objections to accepting this email account as an alternate service method for this complaint especially since this email account is still in use. It is implausible that the respondent replied to an email with the complaint attached in PDF format, but did not receive the complaint itself.

Section 15(b) of the Uniform Electronic Transaction Act (UETA) states:

“Unless otherwise agreed between a sender and the recipient, an electronic record is received when: (1) it enters an information processing system that the recipient has designated or uses for the purpose of receiving electronic records or information of the type sent and from which the recipient is able to retrieve the electronic record; and (2) it is in a form capable of being processed by that system.”

Section 15(e) of the UETA goes on to state:

“An electronic record is received under subsection (b) even if no individual is aware of its receipt.”

Furthermore, courts have ruled that email is an acceptable alternate method of service. See *Rio Properties Inc v. Rio International Interlink*, 284 F.3d 1007 (9th Cir.2002). See also *Rpost Holdings, Inc v. Kagan*, No. 2:11-cv238-JRG, 2012 U.S. Dist. LEXIS 7566 (E.D. Tex., Jan. 23, 2012).

The complainant is currently outside the United States, therefore cannot personally go and trace the respondent or an address especially since the respondent appears to be evading mail service. An exhaustive search of the internet by the complainant did not reveal any recent addresses for the respondent besides the one that is on file. In showing due diligence, the complainant advised the respondent of her obligation under 46 CFR Part 502.2(i) via email. See *attached exhibit a*. The complainant also sent numerous emails to the respondent in the month of May, with the exception of one email, all were ignored by the respondent. Clearly, the respondent has either intentionally evaded service by mail or deliberately failed to share a new mailing address.

DAMAGES

Respondent's failure to keep her contractual obligation along with fraud, deceit and negligence set in motion a series of events and circumstances that caused damages / losses to the complainant.

The complainant had to additionally pay, TROY's agent CP World, out of pocket \$1,107.97 (157,000 Rupees) owed by the respondent to get the cargo released. See *Complaint for Formal Adjudication exhibit 9*.

The complainant had to pay an additional \$55.00 per day container demurrage / detention charge for 17 days (April 7th through April 23rd), a total of \$935.00 (132,536.00 rupees); See

<https://www.maersk.com/en/local-information/pakistan/import> ; beyond the 7-day free time, because of the delay caused by the respondent's breach of agreement, fraud and negligence. See *Complaint for Formal Adjudication exhibits 11, 12 & 13*.

Furthermore, the complainant had intended to stay in Karachi for only 3 nights. However, due respondent's breach, fraud and negligence, the complainant had to stay at a hotel in Karachi for additional 18 nights for a total of 21 nights, and pay a total of 388,500 Rupees in hotel lodging at a rate of 18,500 rupees per night. For the additional 18 nights lodging the total comes out to 333,000 rupees or \$2,350.03. See *Complaint for Formal Adjudication exhibit 14*.

In addition, the complainant had to pay taxi charges at the least in the amount of about \$7.76 (1100 Rupees) per day or \$116.40 for 15 days to get to and from MAERSK Office, CP World Office, Western Union and hotel etc.

As already mentioned, the complainant had intended to stay in Karachi for only 3 days. However, due respondent's breach, fraud and negligence, the complainant had to stay at a hotel in Karachi for additional 18 days resulting in meals and incidental expenses (M&IE) incurred by the complainant. According to the U.S State Department the M&IE rate set for Karachi is \$82 per day. See <https://aoprals.state.gov/>
https://aoprals.state.gov/web920/per_diem_action.asp?MenuHide=1&PostCode=10359
The total M&IE comes out to 18 X \$82 = \$1,476.00

In April 2019, the price of dollar in the open market against the rupee fluctuated between 141 to 142 rupees per dollar. Therefore, the exchange rate used in this calculation is 141.70 rupees per dollar, which was also the rate used by MAERSK shipping company.

<u>Respondent's shipping dues paid by the complainant</u>	<u>\$1,107.97</u>
<u>Container charges caused by respondent's delay</u>	<u>\$935.00</u>
<u>Complainant's taxi charges</u>	<u>\$116.40</u>
<u>Complainant's lodging for 18 nights in Karachi</u>	<u>\$2,350.00</u>
<u>Complainant's M&IE for 18 days in Karachi</u>	<u>\$1,476.00</u>
Total Compensatory Damages / Losses: \$5,985.40	

RELIEF SOUGHT

The complainant prays that the Commission enter default against the respondent and issue a summary decision on default as follows:

- A. Enter a decision that the acts and practices of the respondent were in violation of 46 U.S. Code § 41102(c).
- B. Revoke and cancel respondent's FMC license.
- C. Award the complainant \$5,985.40 in compensatory damages.
- D. Award the complainant \$272.00 filing fee used to file this complaint.

- E. Award the complainant \$73.00 international mail and courier charges used in filing this complaint from Pakistan.
- F. Award the complainant \$2595.00 in restitution.
- G. Issue further order(s) as the Commission determines to be proper.

Respectfully submitted by the complainant,



Muhammad J.Rana

JUNE 10, 2019

Date

I, Muhammad J.Rana  hereby declare that I have read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, I believe to be true.

I hereby certify that, on June 10, 2019, a copy of the foregoing attached Motion for Entry of Default and Summary Decision on Default was sent to the following by the method indicated below:

FMC Administrative Judge
Erin M. Wirth

VIA Electronic Mail:
judges@fmc.gov

Michelle Franklin
D.B.A The Right Move, Inc.

VIA Electronic Mail:
mfranklin@therightmove4u.com



Muhammad J. Rana (Complainant)

JUNE 10, 2019

Date

On Thursday, May 2, 2019, 7:01 PM, Muhammad Rana <muhammad.rana@rocketmail.com> wrote:

Hi Michelle,

Thank you for acknowledging receipt of my complaint with the Federal Maritime Commission.

Please be advised that pursuant to 46 CFR Part 502.2(i) you "are under a continuing obligation to provide the Commission and all other parties in a proceeding with accurate and current contact information including a street address, telephone number, and e-mail address."

Thank you,

Muhammad Rana (complainant)

On Thursday, May 2, 2019, 6:55 PM, Michelle Franklin <mfranklin@therightmove4u.com> wrote:

Oh Muhammad ,

I knew all along you wanted me to be the bad person so much !

I can't wait for you to find out I'm really not ;)

You did the right thing ! Thank you !

I guess from now on we can communicate via the FMC .

I wish you all the best !

Michelle

----- Original message-----

From: Muhammad Rana

Date: Thu, May 2, 2019 7:33 AM

To: Michelle Franklin;

Cc:

Subject: Courtesy Copy

Hi Michelle,

Please see attached. Let me know if you have any questions or concerns.

Thank you,

Muhammad Rana

EXHIBIT A

AFFIDAVIT OF SERVICE

I hereby declare that on May 2, 2019 at 7:33 am United States Eastern Standard Time / 4:33 pm Pakistan Time, a copy of my Formal Complaint for Adjudication was sent via email from Pakistan to the respondent Michelle Franklin at mfranklin@therightmove4u.com.

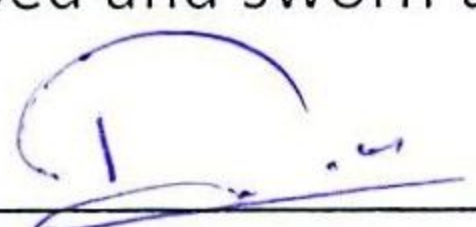
I further declare that after receiving my Formal Complaint for Adjudication on May 2, 2019 at 9:55 am United States Eastern Standard Time / 6:55 pm Pakistan time, the respondent Michelle Franklin replied to the email containing my Formal Complaint by stating “..you did the right thing ..I guess from now on we can communicate via the FMC.”

On May 2, 2019 at 10:01 am United States Eastern Standard Time / 7:01 pm Pakistan Time, I sent another email to the respondent at mfranklin@therightmove4u.com advising her of her obligation under 46 CFR Part 502.2(i).

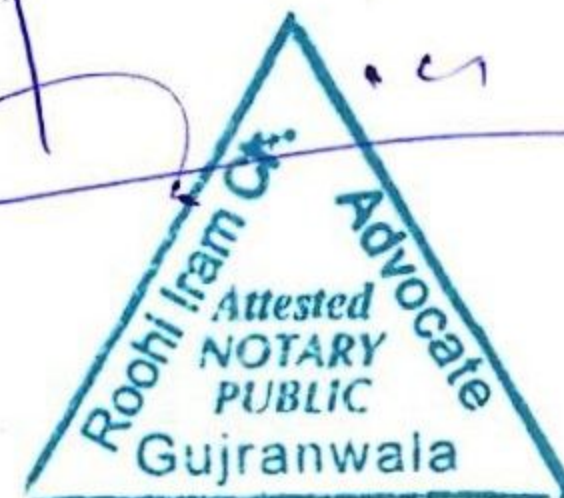
Muhammad J.Rana



Subscribed and sworn to before me, a notary public:

 this 29th day of May, 2019
(Notary Public)

My Commission expires: December 12, 2019



29-05-2019

EXHIBIT B

On Thursday, May 30, 2019, 5:09 PM, Michelle Franklin <mfranklin@therightmove4u.com> wrote:

A wire for \$1025 was initiated yesterday .
You should have the payment by tomorrow in the bank account you have provided.

The amount is the ocean cost that we failed to pay in time .

You can take all the legal actions you want. The company is closed !
It was closing down and money was tight and therefore the delay !
I had intentions of paying you back all alone , but you were too busy making this something it was not !

I do apologize for the inconvenience and wish you all the best !

Michelle

----- Original message-----

From: Muhammad Rana

Date: Thu, May 30, 2019 2:58 AM

To: Michelle Franklin;

Cc:

Subject: Affidavit of Service

FYI

EXHIBIT C

On Friday, May 31, 2019, 11:37 PM, Muhammad Rana
<muhammad.rana@rocketmail.com> wrote:

Hi Michelle,

Please see attached copy of my complaint for formal adjudication. You received a copy of this document on May 2, 2019. Please review pages 6 & 7 where I have documented damages / losses incurred by me as a result of your failure to pay shipping.

I am willing to settle this now for \$4,509.40. Let me know if you are amenable to this offer or if you have a counter offer. This offer will expire after 7 days.

Thank you,
Muhammad Rana

EXHIBIT D